

[5 EDW. 7.] *Dublin Corporation (Superannuation)* [Ch. xxxi.]  
*Act, 1905.*



**CHAPTER xxxi.**

An Act to enable the Corporation of the city of Dublin to grant pensions or other superannuation allowances to artisans workmen labourers and servants in their service in certain cases and for other purposes.

A.D. 1905.

[30th June 1905.]

**W**HEREAS the city of Dublin is governed by the right honourable the lord mayor aldermen and burgesses of Dublin (in this Act called "the Corporation") :

And whereas by the Local Officers' Superannuation Act (Ireland) 1869 the Corporation are empowered with the consent of the Lord Lieutenant to grant superannuation allowances to their officers in certain cases in the manner provided by that Act :

32 & 33 Vict.  
c. 79.

And whereas by the Dublin Corporation (Markets &c.) Act 1901 powers were conferred on the Corporation to grant pensions and gratuities in certain cases to any person employed by the Corporation under the provisions of the Dublin Corporation Fire Brigade Act 1862 :

1 Edw. 7.  
c. cv.

25 Vict.  
c. xxxviii.

And whereas it is expedient that the Corporation should be empowered to grant and pay pensions or other superannuation allowances to artisans workmen labourers and servants in their employment in certain cases as by this Act provided :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas an absolute majority of the whole number of the council at a meeting held on the twenty-fourth day of October one thousand nine hundred and four after ten clear days' notice by public advertisement of such meeting and of the purposes

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A.D. 1905. — thereof in the Irish Daily Independent and Nation the Irish Times the Freeman's Journal and the Daily Express being local newspapers published and circulating in the said city such notice being in addition to the ordinary notices required for summoning such meeting resolved that the council should promote the Bill for this Act and that the expense of and in connection with such promotion should be defrayed out of the borough fund and borough rate improvement fund and improvement rate and other funds and rates of the borough :

And whereas such resolution was published twice in each of the said newspapers and has received the approval of the Local Government Board for Ireland :

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the council at a further special meeting held in pursuance of a similar notice on the seventh day of February one thousand nine hundred and five being not less than fourteen days after the deposit of the Bill in Parliament :

And whereas the propriety of the promotion of the Bill for this Act was approved by a special resolution of the persons qualified to vote at an election of members of the council passed at a meeting summoned and held in conformity with the provisions of section 7 of the Borough Funds (Ireland) Act 1888 :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

Short title.        1. This Act may be cited as the Dublin Corporation (Superannuation) Act 1905.

Council to execute Act.        2. This Act shall be carried into execution by the Corporation acting by the town council.

Corporation may grant pensions to persons in their employ.        3. The Corporation may at their discretion with the consent of the Lord Lieutenant grant to any artisan workman labourer or servant in their employment whose whole time shall have been devoted to such employment and who shall become incapable of discharging the duties thereof with efficiency by reason of permanent infirmity of mind or body or of old age upon his resigning or otherwise ceasing to hold such employment a weekly pension or

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allowance not exceeding in any case two thirds of the average weekly amount paid to him as wages by the Corporation during the three years next before the day on which he ceases to hold such employment and shall charge such pension or allowance to the same fund as that to which such wages would have been charged if he had continued in such employment. A.D. 1905.

4. No artisan workman labourer or servant of the Corporation shall be entitled to such pension or allowance who shall not have been in the employment of the Corporation twenty years at the least nor on the ground of age who shall not also have completed the full age of sixty years. Limitation of grants of allowances.

5. No grant shall be valid under this Act unless it shall be sanctioned by two meetings of the council the second meeting to be at an interval of not less than one month from the first. Conditions of grant.

6. All pensions or allowances granted under this Act shall be payable to or in trust for such artisan workman labourer or servant only and shall not be assignable for nor chargeable with his debts or other liabilities. Pensions not to be assignable.

7. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto including the costs incurred by the Corporation in complying with the provisions of the Borough Funds (Ireland) Act 1888 with respect to the Bill for this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the borough fund or borough rate improvement fund or improvement rate or such other of their funds and rates as the Corporation think fit. Costs of Act.

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